



CHAPTER cxxi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Mullingar and the County of Tipperary (South Riding). A.D. 1913.

[15th August 1913.]

WHEREAS the Local Government Board for Ireland have made the Provisional Order set out in Schedule A. hereto under the Public Health (Ireland) Acts 1878 to 1907 and the Provisional Order set out in Schedule B. hereto under the Local Government (Application of Enactments) Order 1898 being an Order of the Lord Lieutenant in Council made pursuant to the Local Government (Ireland) Act 1898:

61 & 62 Vict.
c. 37.

And whereas it is requisite that the said Provisional Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to those Orders:

And whereas the Mullingar Rural District Council has borrowed under the Public Health (Ireland) Act 1878 and the Labourers (Ireland) Acts 1883 to 1906 various sums of money leaving the present unexercised borrowing powers of the said Mullingar Rural District Council only three thousand six hundred and ninety pounds or thereabouts in respect of the area of chargeability for the Mullingar Sewerage Scheme consisting of the townlands of Mullingar North Urban and Mullingar South Urban as determined by an order made by the Local Government Board for Ireland and dated the eighteenth day of November one thousand nine hundred and twelve being an area of chargeability within the Mullingar Rural District:

And whereas for the purpose of the said sewerage scheme a further sum of ten thousand pounds or thereabouts over and above the present unexercised borrowing powers of the said

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A.D. 1913. Mullingar Rural District Council in respect of the said area is required to defray the expenditure incurred and about to be incurred in completing the same and the Local Government Board for Ireland after due enquiry has satisfied itself that in the interests of the public health it is necessary that the said sewerage scheme should be forthwith completed and that further borrowing powers be conferred on the said rural district council :

And whereas it is expedient that such further borrowing powers should subject to the consent of the Local Government Board be conferred upon the said rural district council :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Orders in
schedules
confirmed.

1. The Orders set out in the schedules hereto are hereby confirmed and all the provisions thereof shall have full validity and force.

Increase of
borrowing
powers by
Mullingar
Rural Dis-
trict Council
under
41 & 42 Vict.
c. 52.

2. The amount which the Mullingar Rural District Council may borrow under the Public Health (Ireland) Act 1878 for the purposes of the Mullingar Sewerage Order 1913 hereby confirmed and of carrying out the scheme for which the lands water and rights mentioned in that Order are required shall be increased by a sum not exceeding ten thousand pounds and any sum borrowed by that council for the purposes of the said Order and of carrying out the said scheme save in so far as and to the amount that such sum exceeds ten thousand pounds shall not be reckoned in calculating the amount which they may borrow under the said Act for purposes other than the purposes of the said Order.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 1) Act 1913.

SCHEDULES.

A.D. 1913.

SCHEDULE A.

RURAL DISTRICT OF MULLINGAR.

Mullingar.

*Provisional Order to enable the Council of the Rural District
of Mullingar to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Mullingar (in this Order referred to as "the district council") require to purchase and take the lands water and rights described in the schedule hereto for the purpose of improving the sewerage of the town of Mullingar and its neighbourhood in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council shall be empowered to put in force with reference to the lands water and rights described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Westmeath in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

4. This Order may be cited as the Mullingar Sewerage Order 1913

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Mullingar.

SCHEDULE.

COUNTY OF WESTMEATH.

RURAL DISTRICT OF MULLINGAR.

PARISH OF MULLINGAR—TOWNLAND OF MULLINGAR.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land with mill race or stream thereon containing 16p.	Baron Greville of Clonhugh or the General Prisons Board for Ireland or the County Council of Westmeath or the Representative Body of the Church of Ireland.	Thomas F. Nooney Rev. Dr. Seymour. — Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	Thomas F. Nooney Rev. Dr. Seymour. — Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.
2	Land along mill race or river containing 18p.	Same - -	Thomas F. Nooney Rev. Dr. Seymour.	Thomas F. Nooney Rev. Dr. Seymour.
5	Land containing 27p.	Baron Greville of Clonhugh.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.
6	Bed of stream containing 3p.	Baron Greville of Clonhugh General Prisons Board for Ireland County Council of Westmeath.	—	Baron Greville of Clonhugh General Prisons Board for Ireland County Council of Westmeath.
8	Land containing 1r 6p.	Baron Greville of Clonhugh.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall Patrick Kelly.
9	Land containing 12p.	Same - -	Same - - -	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.

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Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1913. Mullingar.
10	Land containing 13p.	Baron Greville of Clonhugh and County Council of Westmeath.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased the County Council of Westmeath. Joseph P. Dowdall.	
11	Land containing 15p.	Same - -	- - -	The County Council of Westmeath Patrick Kelly Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	
13	Land containing 13p. with stream thereon.	Same - -	- - -	Same.	
14	Land with stream or overflow from Mill Race containing 7p.	Baron Greville of Clonhugh.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall.	Nicholas J. Downes Robert Downes William Downes Executors of Christopher Downes deceased Joseph P. Dowdall Patrick Kelly.	
15	Land containing 14p. with stream thereon.	Baron Greville of Clonhugh the County Council of Westmeath.	- - -	The County Council of Westmeath Patrick Kelly.	
17	Land field ditch and stream containing 3a. 1r. 18p.	Baron Greville of Clonhugh.	- - -	Edward Tuite.	
18	Land field ditch and stream containing 4a. 2r. 21p.	Same - -	- - -	Same.	
19	Land with road thereon containing 3r.	Same - -	- - -	Edward Tuite Richard Merlehan Mary Merlehan Bridget Garry and Ellen Egan otherwise Storen.	
20	Land stream or ditch and bank adjoining containing 1r. 20p.	Same - -	- - -	Edward Tuite.	

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and thirteen.

(L.S.)

(Signed) H. A. ROBINSON.

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SCHEDULE B.

*Tipperary
(South
Riding).*

COUNTY OF TIPPERARY (SOUTH RIDING).

*Provisional Order made in pursuance of Article 22 of
the Local Government (Application of Enactments)
Order 1898.*

WHEREAS by subsection (1) of Article 22 of the schedule to the Local Government (Application of Enactments) Order 1898 (in this Order referred to as "the Order of 1898") a county council are authorised to borrow in the manner and for the purposes in that subsection mentioned and by subsection (2) of the same Article it is provided that where the total debt of the county council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the county the proposed loan shall not be borrowed except where it is for the purpose of a lunatic asylum or except in pursuance of a Provisional Order made by the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") and confirmed by Parliament:

And whereas the county council of the county of Tipperary (South Riding) (in this Order referred to as "the council") propose to borrow under the said Article loans which by reason of the limit imposed in that Article cannot be borrowed except in pursuance of a Provisional Order of the Local Government Board confirmed by Parliament:

And whereas it is expedient that a Provisional Order should be made under the said Article for the purposes of the proposed loans:

Now therefore We the Local Government Board in exercise of the powers given to Us by Article 22 of the Order of 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:--

1. The council may from time to time in pursuance of this Order borrow under and in accordance with the provisions of Article 22 of the Order of 1898 loans not exceeding in the aggregate twenty-three thousand seven hundred and forty-seven pounds and seventeen shillings notwithstanding that at the time of such borrowing the total debt of the council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums)

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exceeds or will if the loan is borrowed exceed the amount of one-tenth of the annual rateable value of the rateable property of the county.

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(South
Riding).

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the council and may be raised equally over the whole county.

3. Any expression to which a special meaning is assigned in the Local Government (Ireland) Act 1898 shall in this Order have the like meaning.

4. This Order may be cited as the County of Tipperary (South Riding) Order 1913.

Given under our seal of office this nineteenth day of March in the year of our Lord one thousand nine hundred and thirteen.

(L.S.)

(Signed) H. A. ROBINSON.

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